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It is important to note here that there were options other than litigation in all the cases discussed. With civil rights, massive voter-registration drives could have been started in the urban North and in some major Southern cities. Marches, demonstrations, and sit-ins could have been organized and funded years before they broke out, based on the example of labor unions and the readiness of groups like the Congress of Racial Equality. Money could have been invested in public relations. Amazingly, in 1957 the NAACP spent just \$7,814 for its Washington Bureau operations. Its entire "public relations and informational activities" spending for 1957 was \$17,216. NAACP lobbyists did not even try to cultivate the black press or the black church, let alone their white counterparts. And even in 1959 the public relations budget was only \$10,135 (Ware 1962, 188-89, 189, 190, 13). When activists succumbed to the "lawyers' vision of change without pain" (Scheingold 1974, 145), a "massive social revolution" was sidetracked into "legal channels" (Horwitz 1979, 184). Because the NAACP failed to understand the limits on U.S. courts, its strategy was bound to fail.⁷

With women's groups, the kinds of political activities and grassroots organizing that started in the 1980s could have been organized earlier. Organizing around issues such as the earning gap and comparable worth could have been funded. Political activity on behalf of abortion at the state level could have been given greater emphasis. And coalition building, crucial in any ongoing political movement, could have been supported. Only belatedly, after June 1977, did pro-choice forces begin to work together to influence the legislative process (Gelb and Palley 1979, 378). As with civil rights, there was no lack of alternatives for social reform action."

Similarly, same-sex marriage proponents could have focused on the extension of benefits to domestic partners. Polls have repeatedly shown both growing and majority support for such action. By not arguing for marriage, they could have avoided the explosive response that the quest for same-sex marriage engenders.

If this is the case, then there is another important way in which courts affect social change. It is, to put it simply, that courts act as "fly-paper" for social reformers who succumb to the "lure of litigation." If the constraints of the Constrained Court view are correct, then courts can seldom produce significant social reform. Yet if groups advocating such reform continue to look to the courts for aid, and spend precious resources in litigation, then the courts also limit change by deflecting claims from substantive political battles, where success is possible, to harmless legal ones where it is not.